

An Act

ENROLLED HOUSE
BILL NO. 4302

By: Norwood of the House

and

Gillespie of the Senate

An Act relating to children; amending 10 O.S. 2021, Section 601.6, as amended by Section 1, Chapter 178, O.S.L. 2025 (10 O.S. Supp. 2025, Section 601.6), which relates to the Office of Juvenile System Oversight; authorizing the release of certain information for certain purposes; prohibiting disclosure to any other person or entity; providing exception; and providing an effective date.

SUBJECT: Children

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 601.6, as amended by Section 1, Chapter 178, O.S.L. 2025 (10 O.S. Supp. 2025, Section 601.6), is amended to read as follows:

Section 601.6. A. For purposes of this section, the term "children and youth service system" shall have the same meaning as it is defined in Section 600 of this title.

B. The Office of Juvenile System Oversight shall have the responsibility of inspecting and investigating misfeasance and malfeasance within the children and youth service system, as directed by the Oklahoma Commission on Children and Youth, to ascertain compliance with established responsibilities.

C. The Office shall conduct not less than one but not more than two regular, periodic, unannounced inspections of state-operated children's institutions and facilities annually. The Office is

further authorized to inspect privately operated children's institutions and facilities that receive state or federal funding, on a periodic basis or as needed.

D. The Office shall investigate complaints filed with the Office regarding the children and youth service system.

E. The Office of Juvenile System Oversight shall have the authority to:

1. Access all facilities within the children and youth service system for the purpose of conducting inspections and investigations;

2. Examine and copy all records and budgets pertaining to the children and youth service system and to review inspection reports of the State Fire Marshal, State Department of Health, and any other agency that accredits such institutions and facilities;

3. Interview the residents of institutions and facilities within the children and youth service system;

4. Subpoena witnesses and hold public hearings;

5. Establish, in accordance with the Dispute Resolution Act, Sections 1801 through 1813 of Title 12 of the Oklahoma Statutes, a voluntary program for foster parents to mediate complaints concerning the rights of foster parents, as provided for in Section 1-9-119 of Title 10A of the Oklahoma Statutes, that relate to certain actions, inactions or decisions of the Department of Human Services, the Department of Juvenile Justice, or child-placing agencies that may adversely affect the safety and well-being of children in the custody of the state;

6. Receive any complaint alleging that an employee of the Department of Human Services or a child-placing agency has threatened a foster parent with removal of a child from the foster parent, harassed a foster parent, or refused to place a child in a licensed or certified foster home, or disrupted a child placement as retaliation or discrimination towards a foster parent who has:

a. filed a grievance pursuant to Section 1-9-120 of Title 10A of the Oklahoma Statutes,

b. provided information to any state official or Department employee, or

- c. testified, assisted, or otherwise participated in an investigation, proceeding, or hearing against the Department or child-placing agency.

The Office of Juvenile System Oversight shall forward the complaints to the Office of Client Advocacy for investigation pursuant to subsection D of Section 1-9-112 of Title 10A of the Oklahoma Statutes. The Office of Juvenile System Oversight shall work with the Office of Client Advocacy to ensure the complaints are investigated and resolved in accordance with the grievance procedures provided in Section 1-9-120 of Title 10A of the Oklahoma Statutes. The provisions of this paragraph shall not apply to any complaint by a foster parent regarding the result of a criminal, administrative, or civil proceeding for a violation of any law, rule, or contract provision by that foster parent, or the action taken by the Department or a child-placing agency in conformity with the result of any such proceeding;

7. Issue reports to the Governor, Speaker of the House of Representatives, President Pro Tempore of the Senate, Chief Justice of the Supreme Court of the State of Oklahoma, any appropriate prosecutorial agency, the director of the agency under consideration, and other persons as necessary and appropriate; and

8. Provide recommendations to the Oklahoma Commission on Children and Youth on or before May 1 of each year.

F. The Office of Juvenile System Oversight shall not release information that would identify a person who makes a complaint to the Office, unless ~~a~~:

1. A court of competent jurisdiction orders release of the information for good cause shown; or

2. The disclosure of such information is made to an appropriate law enforcement agency when necessary to protect the safety of others after a complainant communicates a threat against an individual or entity that a reasonable person would interpret as a serious expression of intent to commit an act of unlawful violence. Such information shall not be disclosed to any other person or entity except pursuant to an order of a court of competent jurisdiction.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____